

**GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES  
ON THE APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION  
AGAINST DISCRIMINATION IN EDUCATION**

**Preparation of the 11th Consultation**

**Combating discrimination in education**

Eleventh consultation of Member States on the application of the Convention and the Recommendation against Discrimination in Education (1960) (2024-2025)

**GUIDELINES FOR THE PREPARATION OF REPORTS BY MEMBER STATES ON THE  
APPLICATION OF THE 1960 CONVENTION AND RECOMMENDATION AGAINST  
DISCRIMINATION IN EDUCATION**

**1. Introduction**

The Convention against Discrimination in Education (“the Convention”) and the Recommendation against Discrimination in Education (“the Recommendation”), adopted by UNESCO’s General Conference in 1960, are aligned with UNESCO’s constitutional mandate to “advance the ideal of equality of educational opportunities without regard to race, sex or any distinctions, economic or social”. The Convention is the first legally binding international instrument focused on the **right to education** and the only one exclusively dedicated to it.

The right to education is one of the key principles underpinning the Education 2030 agenda and Sustainable Development Goal 4 (SDG4) adopted by the international community in 2015. SDG 4 seeks to ensure the full enjoyment of the right to education as fundamental to achieving sustainable development. Its scope captures the multidimensional nature of the right to education.

Representing a powerful tool to advance SDG 4 by ensuring effective articulation between normative and operational work, the Convention has been recognized as a cornerstone of Education 2030 agenda.

The present Guidelines are intended to assist Member States in the preparation of country reports on the implementation of the Convention and the Recommendation in the context of the 11th consultation.

**2. Scope of the Consultation**

Considering the Education 2030 agenda, the monitoring of the Convention and the Recommendation is of crucial importance to ensure an education that is truly inclusive for all and to counter persistent inequalities in access, participation and learning outcomes at all levels, particularly for the most vulnerable groups. This is particularly true under the current context in which countries are making efforts to recover from the learning disruption caused by the COVID-19 pandemic. Concrete measures taken by countries in accordance with their legal obligations under these instruments contribute to implementing the Education 2030 agenda.

As the scope and content of the legal obligations under the right to education are aligned with the 10 targets of SDG 4, efforts are being made to ensure that the components of the targets are included in

the guidelines and that these guidelines serve as a valuable contribution to monitoring progress towards SDG 4 targets.

Beyond SDG 4, the Convention is also closely aligned with the normative content on the right to education of other international human rights instruments such as the International Covenant on Economic, Social and Cultural Rights (1966), Convention on the Elimination of All Forms of Discrimination against Women (1979), the Convention on the Rights of the Child (1989) and the Convention on the Rights of Persons with Disabilities (2006).

In addition, this Consultation is an opportunity to inform the ongoing **UNESCO Initiative on the Evolving Right to Education within a lifelong learning perspective**<sup>1</sup> (launched in December 2021). The Initiative investigates how the right to education could be reinforced placing it within a lifelong learning perspective and in light of the new demands being placed on education. This Initiative builds on the **Report from the International Commission on the Futures of Education**<sup>2</sup>, which suggests to broaden our understanding of the right to education to clearly apply it to all ages and across all times and spaces. The initiative is also in-line with the **Vision Statement of the United Nations Secretary General on Transforming Education**<sup>3</sup>, and the **Report on the 2022 Transforming Education Summit**<sup>4</sup> which call for the transformation of education systems to ‘include everyone, regardless of circumstance, context or background’. The Initiative on the Evolving Right to Education aims to open a collaborative and participatory discussion about the international framework to ensure the effective enforcement of the right to education and learning throughout life for all. Finally, the Initiative builds on recent inter-governmental dialogues, including the Marrakech Framework for Action for Adult Learning and Education<sup>5</sup> and the Tashkent Declaration on Early Childhood Care and Education.<sup>6</sup>

It is also important to note that previous consultations on the Convention and Recommendation revealed that countries now understand the right to education in an extended manner. The 11th consultation builds on the findings of the previous national reports to include various areas that have direct repercussions on the right to education such as, for instance, digital learning, climate considerations, lifelong learning entitlement, and the role of non-state actors in education.

### 3. Reporting obligations

There are differences in the legal nature of the obligations under the Convention, as distinguished from those under the Recommendation. The Convention has binding force and the States Parties are under the obligation to incorporate its provisions into their domestic frameworks. The Recommendation, non-binding in nature, has political and moral force. Its adoption sought to take into account the difficulties that certain States might experience in ratifying the Convention, in particular with respect to their federal structure.

Bearing in mind the differences in legal scope inherent to the nature of these two categories of instruments, the content of the Recommendation is identical to that of the Convention. Member States are expected to give effect to it in national legislation and education policies.

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1 <https://www.unesco.org/en/right-education/evolving>

2 <https://unesdoc.unesco.org/ark:/48223/pf0000379707>

3 [https://www.un.org/sites/un2.un.org/files/2022/09/sg\\_vision\\_statement\\_on\\_transforming\\_education.pdf](https://www.un.org/sites/un2.un.org/files/2022/09/sg_vision_statement_on_transforming_education.pdf)

4 [https://www.un.org/sites/un2.un.org/files/report\\_on\\_the\\_2022\\_transforming\\_education\\_summit.pdf](https://www.un.org/sites/un2.un.org/files/report_on_the_2022_transforming_education_summit.pdf)

5 [Marrakech Framework for Action | Institute for Lifelong Learning \(unesco.org\)](https://www.unesco.org/en/marrakech-framework-for-action)

6 [Tashkent-declaration-ecce-2022.pdf \(unesco.org\)](https://www.unesco.org/en/tashkent-declaration)

The reporting obligation under the provisions of Article VII of the Convention and of the Recommendation is the same. Article VIII of UNESCO's Constitution states that *"Each Member State shall submit to the Organization, at such times and in such manner as shall be determined by the General Conference, reports on the laws, regulations and statistics relating to its educational, scientific and cultural institutions and activities, and on the action taken upon the recommendations and conventions referred to in Article IV, paragraph 4"*. Therefore, even if a country is not a State Party to the Convention, it needs to submit a report on the implementation of the Recommendation, which means that **all UNESCO Member States are expected to submit a national report** on the implementation of these instruments in the context of monitoring consultations.

#### 4. Participation in consultations

The reporting period for the 11th consultation on the implementation of the Convention and the Recommendation covers four years (2021-2024).

The Futures of Education Report calls for a new social contract for education, which requires to understand education as a common good and a shared societal endeavor. To ensure this, extensive consultations involving a broad range of stakeholders is needed. The reporting process therefore needs to be **participatory**. This includes ensuring cooperation between ministries of education and other ministries dealing with aspects of the right to education as well as consulting social partners and **civil society organizations** and other relevant bodies.

The preparation of national reports provides a **good opportunity** for Member States to assess the implementation of the right to education in their country, identify specific challenges, build constructive dialogue with other actors involved in this field and share good practices.

In the preparation of reports, Member States are encouraged to provide **substantive and relevant information in a concise manner**. In addition to a description of the constitutional, legislative, administrative, and policy framework established for the implementation of the provisions guaranteed by the instruments, the information supplied by Member States should demonstrate how legal norms and practices comply with the Convention and the Recommendation.

Relevant information supplied for other reporting instances may be reproduced or referred to with precise indication as to its retrieval. Similarly, hyperlinks to any useful documents or relevant legal and policy texts are most welcome and texts can also be added in the annex.

Country reports submitted for previous consultations can be found on the **Observatory on the right to education**<sup>7</sup> in the monitoring section of the country profile. The information provided in the reports are valuable both for the Observatory on the right to education as well as for **HerAtlas**<sup>8</sup>, the online monitoring tool for girls' and women's right to education. Information and data regarding countries' education systems are also available through the UNESCO Institute for Statistics database<sup>9</sup>. Beyond monitoring purposes, the consultation findings and reports inform broader work - serving for knowledge generation, advocacy, and technical cooperation.

#### 5. Modalities and structure

The Guidelines are structured around three chapters:

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<sup>7</sup> <http://www.unesco.org/education/edurights/index.php?action=home&lng=en>

<sup>8</sup> <https://en.unesco.org/education/girls-women-rights>

<sup>9</sup> [UIS Statistics \(unesco.org\)](http://uis.unesco.org)

- The **first chapter** covers general information on adherence to the Convention.
- The **second chapter** aims to gather information on the implementation of the Convention and Recommendation in the context of Sustainable Development Goal 4. As the most extensive part of the Guidelines, this chapter covers: inclusion and non-discrimination in education (section 1), all levels and forms of education (section 2), quality education provision and learning environment (section 3) and finally, strengthening governance systems (section 4).
- The **third chapter** seeks to obtain information on the methods used to draw the attention of the various authorities in the country to the instruments.

With a view to simplify the Guidelines while providing necessary substantive information to assist Member States in the preparation of responses, through a participatory process, **two types of guidance** are provided:

- (1) Open-ended and closed-ended questions to be directly filled in by Member States. Please note that multiple answers may be provided where relevant.
- (2) Additional information aimed at guiding Members States to structure and detail their responses to the open-ended questions (including remarks on how to respond efficiently to the questions raised). These elements are presented in italics.

## GENERAL INFORMATION:

Country name: **State of Palestine**

Organization or entity responsible for the preparation of the report: **Ministry of Education & Higher Education**

Name of contact person: **Dr. Mamoon Jabr, General Director of Planning Department, DG Educational Planning**

Email and telephone number of contact person: mamoon.jabr@moe.edu.ps

### I. Ratification and applicability of the Convention against Discrimination in Education<sup>10</sup>

- Is your country a State Party to the Convention?

✓ **Yes**

No: Does your country plan to ratify this instrument?

☐ **Yes:** Please indicate the stage of ratification process reached by your country and whether assistance is needed:

- ☐ There is interest but no concrete action has been taken
- ☐ The ratification process has been initiated
- ☐ The ratification process is close to completion

- **Please briefly explain the steps that have been taken and timeline when relevant, any difficulties encountered (legal, institutional, political or practical) in completing the ratification process. And how UNESCO can assist:**

☐ No, not considering ratification. Please explain why:

- Is the Convention directly applicable in your country's domestic law?

☐ Yes ☐ No

- Have courts, tribunals and/or administrative authorities adjudicated on issues or violations regarding the right to education?<sup>11</sup>

☐ No

<sup>10</sup> <https://www.unesco.org/en/legal-affairs/convention-against-discrimination-education>

<sup>11</sup> Judicial mechanisms play an important role in enforcing the right to education by ensuring legal accountability and therefore contributing to the practical realization of the right to education.

☐ Yes: Have the provisions of the Convention been invoked?

☐ Yes ☐ No

- Please cite the case law and jurisprudence.

*Information could also be given about the judicial, administrative and other competent authorities having jurisdiction with respect to the right to education.*

## II. Information on the implementation of the Convention or Recommendation in the context of Sustainable Development Goal 4 (SDG4)

### 1. Towards an inclusive non-discriminatory education system

*For reference: This section relates to the main purpose of the Convention/Recommendation that is to underscore the state obligation to proscribe any form of discrimination in education while promoting equality of educational opportunity as laid out in Articles/Paragraphs 1(1), 2 and 3 of the Convention/Recommendation.*

*It further corresponds to the overall aspiration of SDG4 which aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all” by 2030. While it covers all the SDG4 targets, it also specifically covers SDG target 4.5.<sup>12</sup>*

- Please indicate whether the rights and principles laid out in the Convention/Recommendation informed the elaboration of the education legal and/or policy framework:

✓ Yes ☐ No

- If yes, please provide reference:

#### Education Sector Strategic Plan (ESSP) 2021-2023, page 11

**Target 4.5:** By 2030, eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous people and children in vulnerable situations .

Education Law 2017 stipulates:

Article 5: Education is compulsory up to the 10th grade; 2. Education is free in all governmental educational institutions.

Article 6: The general education system consists of the following stages: 1. Kindergartens (not more than 2 years before basic education stage). 2. Basic education (9 years). 3. Secondary education (3 years).

<sup>12</sup>

Which calls on states to “eliminate gender disparities in education and ensure equal access to all levels of education and vocational training for the vulnerable, including persons with disabilities, indigenous peoples and children in vulnerable situations”.

## 1.1 Non-discrimination and equality in education

- Please indicate measures adopted to both prevent and eliminate discrimination in education within the meaning of the Convention/Recommendation<sup>13</sup>, and ensure equal access to all levels and types of education (please tick all that apply):

*For reference: This notably is covered under SDG target 4.1 and partly target 4.b<sup>14</sup>*

☐ Legal texts<sup>15</sup> prohibit discrimination and guarantee equal access to education:

- ✓ In pre-primary education (including early learning and care)
- ✓ In primary education
- ✓ In secondary education
- ☐ In technical and vocational education and training
- ☐ In higher education
- ☐ In adult education and alternative learning

- Please indicate the relevant legal provisions:

**Education Law 2017** stipulates:

Article 10: Admission Age: 1. Students shall be admitted grade one in the primary stage if he she is (5) years and (7) months by 31 August in the year of admission. 2. The admission age for students with disabilities is determined according to instructions issued by the minister in conformance with the relevant international standards and conventions, following coordination with the stakeholders. 3. The Ministry requests from the Ministry of the Interior.

Article 14: Inclusive Education: The Ministry adopts the policy of inclusive education and supportive education which meets all students' needs by providing: 1. Quality education for students vulnerable to exclusion and marginalization such as those with disabilities. 2. Adapted school buildings, education resources and specialized 15 to provide it with the new borns data to follow up primary education age group with the stakeholders qualified teaching staff. 3. Appropriate education curricula and flexible assessment mechanisms which meet the students' individual needs to provide quality education to them.

Article 5: Compulsory Education: Education is compulsory up to the 10th grade; 2. Education is free in all governmental educational institutions.

<sup>13</sup> See: Article/Paragraph 1(1).

<sup>14</sup> Which calls on states to "substantially expand globally the number of scholarships available [...] for enrolment in higher education, including vocational training and information and communications technology, technical, engineering and scientific programmes".

<sup>15</sup> Constitution, laws, decrees, regulations, circulars, etc.

Article 6: Education Stages: The general education system consists of the following stages: 1. Kindergartens (not more than 2 years before basic education stage). 2. Basic education (9 years). 3. Secondary education (3 years).

Article 9: Basic Education: 1. Primary education stage starts from grade (1) and ends by the end of grade (9). 2. Parents or guardians are obligated to enroll the child under their guardianship or custodianship in basic education institutions. 3. The Ministry shall integrate technical and vocational education into the framework of the schooling program from grade 6 through grade 9 in a manner that would ensure students acquisition of the necessary technical experiences and skills.

Article 11: Secondary Education: 1. Secondary stage includes the tenth, eleventh and twelfth grades with the different streams thereof. 2. Secondary education is consists of : 3. Academic stream; 4. Vocational and technical stream. 5. The minister issues the necessary instructions to determine the majors and eligibility criteria for admission to the different secondary education streams.

- Please list the prohibited grounds of discrimination in education as laid out in legal texts:

☐ Policies, programmes and initiatives aim to prohibit and prevent discrimination and ensure equal access to education

✓ In pre-primary education (including early learning and care)

✓ In primary education

✓ In secondary education

☐ In technical and vocational education and training

☐ In higher education

☐ In adult education and alternative learning

- Please provide details:

**Education Law 2017** stipulates:

Article 10: Admission Age: 1. Students shall be admitted grade one in the primary stage if he she is (5) years and (7) months by 31 August in the year of admission. 2. The admission age for students with disabilities is determined according to instructions issued by the minister in conformance with the relevant international standards and conventions, following coordination with the stakeholders. 3. The Ministry requests from the Ministry of the Interior to provide it with the new borns data to follow up primary education age group with the stakeholders.

Article 14: Inclusive Education: The Ministry adopts the policy of inclusive education and supportive education which meets all students' needs by providing: 1. Quality education for students vulnerable to exclusion and marginalization such as those with disabilities. 2. Adapted school buildings, education resources and specialized 15 to provide it with the new borns data to follow up primary education age group with the stakeholders qualified teaching staff. 3. Appropriate education curricula and flexible assessment mechanisms which meet the students' individual needs to provide quality education to them.



Article 5: Compulsory Education: Education is compulsory up to the 10th grade; 2. Education is free in all governmental educational institutions.

Article 6: Education Stages: The general education system consists of the following stages: 1. Kindergartens (not more than 2 years before basic education stage). 2. Basic education (9 years). 3. Secondary education (3 years).

Article 7: Preschool Education (Kindergartens): 1. The Ministry -according to specific criteria- builds kindergarten and centers for training and qualifying the educators of this stage. These criteria are specified by a decision from the minister. . 2. Kindergartens shall obtain license from the Ministry. 3. The minister issues the necessary instructions on the conditions for licensing kindergartens and shall regulate them administratively and technically. 4. The Ministry works to expand its kindergarten services for the aim of making this education stage free and compulsory, in accordance with a standardized systemic framework approved by the Ministry.

Article 9: Basic Education: 1. Primary education stage starts from grade (1) and ends by the end of grade (9). 2. Parents or guardians are obligated to enroll the child under their guardianship or custodianship in basic education institutions. 3. The Ministry shall integrate technical and vocational education into the framework of the schooling program from grade 6 through grade 9 in a manner that would ensure students acquisition of the necessary technical experiences and skills.

Article 11: Secondary Education: 1. Secondary stage includes the tenth, eleventh and twelfth grades with the different streams thereof. 2. Secondary education is consists of : 3. Academic stream; 4. Vocational and technical stream. 5. The minister issues the necessary instructions to determine the majors and eligibility criteria for admission to the different secondary education streams.

☐ Combatting discrimination in terms of curriculum:

- ✓ In pre-primary education (including early learning and care)
- ☐ In primary education
- ☐ In secondary education
- ☐ In technical and vocational education and training
- ☐ In higher education
- ☐ In adult education and alternative learning

- Please provide details:

**Education Law 2017**, stipulates:

Article 35: Education Curricula: The Ministry shall develop the educational curricula for all education stages, based on the following principles: 1. Principles and rules in the national legislations and international human rights conventions. 2. Community philosophy and national values related to religious, moral and humane values that ingrain the values of citizenship and democracy. 3. Stay abreast of h the development and updates in the scientific, technical, economic and cultural fields. 4. Flexibility and responsiveness to the individual needs have gifted students and high achievers as well as those with disabilities. 5. Promote healthy habits and behaviors as well as everyday life skills.

**ESSP, page 10: SDG4 Global Commitments**

Pledging to support gender-sensitive policies, plans and learning environments; to mainstream gender issues in teacher preparation and in school curricula; and, to eliminate gender-based discrimination and violence in schools.

**Culture and Heritage Sector (page 19):**

There is a strong link between the education sector and the culture and heritage sector. The Ministry of Education places great importance to promoting the Palestinian culture and heritage by supporting Palestinian artists, poets and authors. By doing so, it creates a well-educated generation that follows suit of Palestinian poets and authors through organizing students' competitions as well as by consolidating and enhancing students' talents. The Ministry of Education considers the Palestinian heritage as a significant part of the Palestinian people's national identity.

**Environment Sector (page 19):**

The Ministry of Education attaches special attention to environmental issues. In cooperation with PCBS, it makes full biennial periodical survey of the educational environment in schools, preschools, universities and other higher education institutions.

It also provides green and environment-friendly schools buildings. It uses clean energy and grows the lands owned by education facilities. It also promotes students attitudes towards hygiene and gives environmental issues enough room in the curricula. At the same time, it makes sure that students' activities address environment and biodiversity preservation issues in Palestine.

**Tourism and Antiquities Sector (ESSP, page 22):**

The Ministry of Education attaches great attention to promoting students' affiliation to their homeland and their pride in Palestinian history and culture. This is materialized through the Palestinian curricula, educational activities and tours organized by schools to archaeological sites in different Palestinian areas. This role by the Ministry of Education is complementary to the efforts of the Ministry of Tourism and Antiquity to expose Palestinian tourism and archaeological sites demonstrating the history of the people of Palestine and the stories of the people who lived in Palestine over centuries.

**Water and Wastewater Sector (ESSP, page 22):**

Education and training develop the skills and capabilities of using natural resources more sustainably. Education also enhances hygiene. The Ministry of Education, therefore, pays special attention to the rationalization of water-use and safe-handling of wastewater as well as utilization of treated water for agricultural use. The Ministry also gives attention to other environmental and health programs presented to schools. The content of the Palestinian curricula has sufficient room for this subject as well.

- ☐ Other measures adopted to both prevent and eliminate discrimination in education and ensure equal access to all levels and types of education:

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|  |
|--|

## 1.2 Equality of opportunities and inclusion in education

- Please indicate the actions taken/planned to ensure equality of opportunities (in terms of access, participation and completion), equal treatment and to support the inclusion of all learners in learning processes (*several items may be ticked*):

### **General measures:**

- |                                                                                              |                                                                                |
|----------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------|
| ✓ Legislation provides for inclusive education for all                                       | ✓ Multiple and flexible learning pathways <sup>17</sup> are provided for       |
| ✓ Policy measures aim to enhance inclusion in education for all                              | ✓ Curricula and teaching methods are inclusive in design <sup>18</sup>         |
| ✓ Teachers are trained on inclusive education <sup>16</sup> and to value diversity           | <input type="checkbox"/> Multilingual and intercultural education is supported |
| ✓ Initiatives to address discrimination and promote cultural diversity and mutual acceptance |                                                                                |

☐ Other:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Education Law:

Article 14: Inclusive Education: The Ministry adopts the policy of inclusive education and supportive education which meets all students' needs by providing: 1. Quality education for students vulnerable to exclusion and marginalization such as those with disabilities. 2. Adapted school buildings, education resources and specialized 15 to provide it with the new borns data to follow up primary education age group with the stakeholders qualified teaching staff. 3. Appropriate education curricula and flexible assessment mechanisms which meet the students' individual needs to provide quality education to them.

- In general, what challenges were encountered in the implementation of non-discrimination and equal opportunities principles in education? If needed, brief quantitative information may be added.

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<sup>16</sup> Teachers are prepared to teach all student (beyond just students with disabilities), equipping them with knowledge, values and attitudes that permit every student to succeed. See: [UNESCO policy paper](#): Inclusive teaching: preparing all teachers to teach all students, 2020, p.14.

<sup>17</sup> Multiple and flexible learning pathways are 'entry points and re-entry points at all ages and all educational levels, strengthened links between formal and non-formal structures, and recognition, validation and accreditation of the knowledge, skills and competencies acquired through nonformal and informal education' ([Education 2030 Framework for Action](#), para. 33). This may include student transfers between courses and institutions and diverse learning modalities (online, in-person, full-time, part-time, etc.) to respond to individual needs and interests.

<sup>18</sup> In designing the curricula and teaching methods, care is given to ensure that all students are provided with an inclusive and supportive learning experience that offers them the opportunity to succeed whatever their background.

1) Majority of preschool is within the private sector; 2) Free preschool seats in marginalized areas and various cities is unavailable.

**Other relevant general measures, including gender equality**

- ✓ Legislation provides for gender equality in education
- ✓ Policy measures aim to enhance gender equality
- ✓ Gender-responsive education sector planning is undertaken
- ☐ Providing positive or affirmative action measures
- ☐ Providing financial incentives and fellowships
- ✓ Teachers are trained (initial and in-service) on gender equality
- ✓ Teachers are trained to combat stigmatization<sup>19</sup>
- ☐ Other:
- ☐ All barriers for pregnant girls and young mothers in education are eliminated to ensure the continuity of their education
- ☐ Re-entry programmes for young mothers are provided for
- ✓ Ensuring safe and adequate gender-sensitive sanitation facilities<sup>20</sup>
- ✓ Curricula are rid of all stereotypes<sup>21</sup> and bias
- ☐ Ensuring gender parity in science, technology, engineering and mathematics (STEM)
- ☐ Ensuring gender parity in technical and vocational training education and training (TVET)

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Preschool staff are routinely trained on issues of equality, justice and equal opportunities

- What challenges were encountered in achieving gender equality in and through education? If needed, brief quantitative information may be added.

Enrollment in preschool is comprehensive for all children at the age of preschooling. Parents are encouraged to enroll their children. The challenge is mainly the inability of the parents to pay for enrollment in private sector preschools

<sup>19</sup> Stigmatization is the act of treating someone or something unfairly by publicly disapproving of them' (Cambridge Dictionary).

<sup>20</sup> Gender-sensitive sanitation includes clean, safe and separate toilets, with access to water and garbage disposal' ([UNGEI blog post](#), Gender-sensitive sanitation, 2018)

<sup>21</sup> Stereotype is a set idea that people have about what someone or something is like, especially an idea that is wrong' (Cambridge Dictionary).

- Does the legal minimum age for marriage conform to international standards (18 years) <sup>22</sup>:

*Please note that child marriage is a discriminatory practice as often girls can marry at a younger age than boys. Child marriage violates the child's right to education as they are more likely to drop out of school and children who are not in school are more likely to get married.*

✓ Yes ☐ No

- Please provide reference to the relevant laws and provisions and indicate the exceptions to the legal age of marriage as well as the absolute minimum age:

Decision to raise the marriage age to 18 years for both sexes in the Palestinian Sharia [Religious Law] courts: "The decision to legally determine the age of marriage is one of the jurisprudential issues in which the competent authority may issue a law that is consistent with The supreme national interest, therefore, who should recommend this matter is the Sharia judiciary in terms of the discretionary authority of the judge, as the Office of the Chief Justice, on 11/12/2019, directed Circular No. (49/2019) to court judges, stipulating work in accordance with Decree Law No. ( 21) For the year 2019, regarding setting the age of marriage in the State of Palestine at eighteen solar years for both sexes, as of 12/29/2019, and circulating this to the legal officials." (wadaq.info)

### **National minorities:**

*For reference: Article/Paragraph 5(1)(c) of the Convention/Recommendation provides for the rights of national minorities.*

- |                                                                                                         |                                                                                               |
|---------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------|
| ✓ Legislation provides for the right to education of national minorities                                | <input type="checkbox"/> Teachers are trained on intercultural education                      |
| <input type="checkbox"/> Policy measures aim to enhance the right to education of national minorities   | <input type="checkbox"/> Teachers are trained to combat stigmatization <sup>24</sup>          |
| ✓ Policy elaboration includes consultations with local communities                                      | o Multilingual and intercultural education are supported                                      |
| ✓ The right to carry out their own educational activities is legally guaranteed for national minorities | o Native language instruction is ensured for national minorities                              |
| ✓ Educational standards are established for educational institutions run by national minorities         | ✓ Adapting curricula and teaching and learning methods to their needs for national minorities |
| ✓ Positive or affirmative action measures are provided for national minorities                          | ✓ Curricula are rid of all stereotypes <sup>25</sup> and bias                                 |
| ✓ Financial incentives and fellowships are provided for national minorities                             |                                                                                               |

<sup>22</sup> Please note that according to the Joint general recommendation No. 31 of the Committee on the Elimination of Discrimination against Women/general comment No. 18 of the Committee on the Rights of the Child on harmful practice, para. 20: "a marriage of a mature, capable child below 18 years of age may be allowed in exceptional circumstances, provided that the child is at least 16 years of age and that such decisions are made by a judge based on legitimate exceptional grounds defined by law and on the evidence of maturity, without deference to culture and tradition."

<sup>24</sup> Supra note 15.

<sup>25</sup> Supra note 16.

☐ Other<sup>23</sup>:

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The State guarantees equality of rights and freedoms for all, regardless of race, origin, religion, language, gender, origin, property status, profession, beliefs, or affiliation to political parties, trade union organizations, or other public associations. Restrictions on rights and freedoms on the basis of race, ethnicity, religion, language, sex, origin, beliefs, political or social affiliation are prohibited.

- What challenges were encountered in realizing the right to education of minorities? If needed, brief quantitative information may be added.

### **Indigenous people:**

- |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                     |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <ul style="list-style-type: none"><li>✓ Legislation provides for the right to education of indigenous people</li><li><input type="checkbox"/> Policy measures aim to enhance the right to education of indigenous people<ul style="list-style-type: none"><li>✓ Policy elaboration includes consultations with local communities</li><li>✓ The right to carry out their own educational activities is legally guaranteed for indigenous people</li></ul></li><li><input type="checkbox"/> Educational standards are established for educational institutions run by indigenous people<ul style="list-style-type: none"><li>✓ Positive or affirmative action measures are provided for indigenous people</li></ul></li><li><input type="checkbox"/> Other:</li></ul> | <ul style="list-style-type: none"><li><input type="checkbox"/> Financial incentives and fellowships are provided for indigenous people<ul style="list-style-type: none"><li>✓ Teachers are trained on intercultural education</li><li>✓ Teachers are trained to combat stigmatization<sup>26</sup></li><li>✓ Multilingual and intercultural education are supported</li><li>✓ Native language instruction is ensured</li><li>✓ Adapting curricula and teaching and learning methods to their needs for indigenous people</li></ul></li><li><input type="checkbox"/> Curricula are rid of all stereotypes<sup>27</sup> and bias</li></ul> |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

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<sup>23</sup> Please see: [UNESCO report](#) 'The right to education of minorities: Overview of States' measures reported in the 10th Consultation on the 1960 Convention and Recommendation against Discrimination in Education, 2023.

<sup>26</sup> Supra note 15.

<sup>27</sup> Supra note 16.

- What challenges were encountered in realizing the right to education of indigenous people?  
If needed, brief quantitative information may be added.

**People on the move (migrants, refugees, asylum-seekers, stateless persons and internally displaced persons) and trapped populations<sup>28</sup>:**

- ✓ Legislation provides for their right to education
- ✓ Policy measures aim to enhance their right to education
- ✓ Inclusion in mainstream schools is ensured
- ✓ Positive or affirmative action measures are provided for
- All administrative barriers to access education are removed
- Alternative administrative procedures (placement tests, portfolio of evidence, etc.) to overcome administrative barriers<sup>29</sup> are provided for
  - ✓ **Teachers are specifically trained to ensure their inclusion**
- Teachers are trained to combat stigmatization<sup>30</sup>
- Other:
- Financial incentives and fellowships are provided for
- Auxiliary assistance is provided
- ✓ Multiple and flexible learning pathways<sup>31</sup> are provided
- Curricula are rid of all stereotypes<sup>32</sup> and bias
- Accelerated learning programmes are provided
- Non-formal and/or alternative education programmes are provided
- Language classes to newcomers are provided for
- ✓ **Multilingualism and intercultural education are encouraged**

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

The Ministry of Education supports refugee education in the country on a regular basis. Any refugee and immigrant who has entered the country is entitled to free compulsory basic and secondary education. Refugees can also apply for higher/vocational education according to the university admission process and scholarship application.

<sup>28</sup> 'Trapped populations are those who are unable to migrate to safe locations and remain trapped in locations vulnerable to the impacts of climate hazards' ([UNESCO report](#): The impact of climate displacement on the right to education, 2020, p. 2).

<sup>29</sup> While lack of documentation (such as identity papers, birth certificates, residency permits, etc.) should not be an obstacle to access education, these can constitute a barrier to education See: [UNESCO publication](#): Handbook on the right to education, 2018, p. 96.

<sup>30</sup> Supra note 15.

<sup>31</sup> Supra note 13

<sup>32</sup> Supra note 16.

**ESSP, page 16:**

**UNRWA (U.N. Agency):** The United Nations Relief and Works Agency (for Palestinian Refugees) provides educational services in schools established for Palestinian refugees. It administers 12.2% of Palestinian schools, distributed as follows: 4.2% in the northern governorates (West Bank), and 37.2% in the southern governorates (Gaza Strip). It also administers schools in Palestinian refugee camps in Lebanon, Jordan and Syria.

- Have specific measures been adopted for climate displaced persons?

☐ Yes ☐ No

- Please elaborate:

- What challenges were encountered in realizing the right to education of migrants, refugees, asylum seekers, stateless persons and IDPs? If needed, brief quantitative information may be added.

**People with disabilities:**

- |                                                                                                       |                                                                                                  |
|-------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------|
| <input checked="" type="checkbox"/> Legislation provides for their right to education                 | <input checked="" type="checkbox"/> Mainstream teachers are specifically trained on disabilities |
| <input checked="" type="checkbox"/> Policy measures aim to enhance their right to education           | <input checked="" type="checkbox"/> Teachers are trained to combat stigmatization <sup>33</sup>  |
| <input checked="" type="checkbox"/> Inclusion in mainstream schools is ensured                        | <input checked="" type="checkbox"/> Auxiliary assistance is provided                             |
| <input checked="" type="checkbox"/> Special schools are used as resource centers to inclusive schools | <input type="checkbox"/> Curricula and teaching and learning methods are adapted                 |
| <input type="checkbox"/> Positive or affirmative action measures are provided                         | <input type="checkbox"/> Curricula are rid of all stereotypes <sup>34</sup> and bias             |
| <input type="checkbox"/> Financial incentives and fellowships are provided                            | <input type="checkbox"/> Education infrastructure and learning materials are adapted             |
| <input type="checkbox"/> Other                                                                        |                                                                                                  |

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Education Law Article 14: Inclusive Education: The Ministry adopts the policy of inclusive education and supportive education which meets all students' needs by providing: 1. Quality

<sup>33</sup> Supra note 15.

<sup>34</sup> Supra note 16.



education for students vulnerable to exclusion and marginalization such as those with disabilities. 2. Adapted school buildings, education resources and specialized 15 to provide it with the new borns data to follow up primary education age group with the stakeholders qualified teaching staff. 3. Appropriate education curricula and flexible assessment mechanisms which meet the students' individual needs to provide quality education to them.

سياسة التعليم الجامع فلسطين 2015

<https://moe.edu.ps/m/3100>

استراتيجية تنفيذ سياسة التعليم الجامع 2016

<https://moe.edu.ps/m/3101>

- What challenges were encountered in realizing the right to education of people with disabilities? If needed, brief quantitative information may be added.

The current educational system and educational environment do not accommodate the integration and education of all students with disabilities who are of school age. Main challenges are:

1. The lack of data on unenrolled students with disabilities in the education system.
2. The lack of special budgets to integrate and educate students with disabilities.
3. There is an educational gap between integrated students with disabilities in basic and secondary education.
4. Low qualified personnel working in the field of special education.
5. The presence of schools that are not environmentally compatible to integrate and educate students with disabilities.
6. Lack of systems, instructions, and principles adapted to students with disabilities.

#### **Students from poor households:**

- |                                                                                                                                        |                                                                                                 |
|----------------------------------------------------------------------------------------------------------------------------------------|-------------------------------------------------------------------------------------------------|
| <input type="checkbox"/> Financial incentives and fellowships for school enrolment are provided                                        | <input checked="" type="checkbox"/> Teachers are trained to combat stigmatization <sup>35</sup> |
| <input type="checkbox"/> Transport, meals and education material are subsidized or provided free of charge beyond compulsory education | <input type="checkbox"/> Curricula are rid of all stereotypes <sup>36</sup> and bias            |
| <input checked="" type="checkbox"/> Positive or affirmative action measures are provided                                               |                                                                                                 |
| <input type="checkbox"/> Other:                                                                                                        |                                                                                                 |

---

<sup>35</sup> Supra note 15.

<sup>36</sup> Supra note 16.

The 2016 Inclusive Education Policy Action Plan mentioned the group of children from economically poor backgrounds, who are children who were not able or were not given the opportunity or were prevented from enrolling in education or from participating in the educational process, including enrollment in the formal (governmental) education system.

- Please elaborate and, where appropriate, indicate the legal and policy measures taken:

Inclusive Education Policy Action Plan, 2016

- What challenges were encountered in realizing the right to education of students from poor households? If needed, brief quantitative information may be added.

Usually, the cost for a student with a disability is three times more than the average student.

## 2. Progress made with respect to implementing the right to education across all levels and forms of education

### 2.1 Early childhood care and education

*For reference: Early childhood care and education (ECCE) is not explicitly provided for in the Convention/Recommendation. However, the international community has increasingly recognized the importance of ECCE over the years. The Committee on the Rights of the Child initially recognized “the right to education during early childhood as beginning at birth” (General Comment No. 7). This became more explicit with the 2010 Moscow Framework for Action and Cooperation<sup>37</sup> and more recently, the Tashkent Declaration and Commitments to Action for Transforming Early Childhood Care and Education<sup>38</sup>. In the current context of the Education 2030 agenda, under SDG target 4.2, states have now committed to “the provision of at least one year of free and compulsory pre-primary education”.*

- Please indicate the measures taken to ensure access to quality ECCE (several items may be ticked):

- |                                                                |                                                                                                                                                                             |
|----------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| ✓ Prior to pre-primary education, ECCE services are free       | ✓ ECCE services respect a child’s need for early cognitive and social development, foundational learning, responsive care, nutrition, health, safety, protection, and play. |
| □ Prior to pre-primary education, ECCE services are affordable |                                                                                                                                                                             |
| ✓ ECCE services are accessible on a non-discriminatory basis   |                                                                                                                                                                             |

- Please elaborate further on the measures taken:

<sup>37</sup> Which states that “ECCE is part of the right to education and the main foundation for holistic human development”.

<sup>38</sup> Which commits states to “Enhance policy and legal frameworks to ensure that the right to education includes ECCE”

Education Law 2017: Stages of Education: The public education system consists of the following stages: 1. Preschool, for a period not exceeding two years before the basic education stage.

- Is compulsory and free of charge pre-primary education available?

- ☐ **Pre-primary education is compulsory.** Please provide the age of enrolment and duration:

Education Law 2017 regarding education, Article (5) Compulsory education: 1. Education shall be compulsory until the end of the tenth grade. 2. Education shall be free in all government educational institutions. Kindergarten, for a period not exceeding two years before basic education.

Article (10) Age of Admission: 1. A student will be accepted into the first basic grade if he has completed five years and seven months of age at the end of August of the year in which he will join school. 2. The age of admission for students with disabilities is determined according to instructions issued by the Minister, and in accordance with relevant international standards and conventions, after coordination with the relevant authorities. 3. The Ministry requests the Ministry of Interior to provide it with all birth data, in order to follow up on students who meet the age to enroll in school with the relevant authorities.

- ☐ Pre-primary education is **not** compulsory.
- ☐ **Pre-primary education is free of charge for all.** Please provide the duration and indicate the extent to which it is free:

Education Law, Article (5) Compulsory education 1. Education shall be compulsory until the end of the tenth grade. 2. Education shall be free in all government educational institutions. Preschool, for a period not exceeding two years before basic education.

- ☐ Pre-primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

- What challenges were encountered in realizing early childhood care and education and pre-primary education?

- ✓ **Limited access**
- ☐ Poor learning outcomes
- ☐ Issues of equity and inclusion

- ☐ Poor quality programmes
- ☐ Other:
- ☐ Low number of professionally trained educators
- ☒ Lack of support to families

- Please elaborate. Brief quantitative information may be added.

Failure to appoint new teachers due to lack of government providing allocations for such positions.

## 2.2 Primary and secondary education

*For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for universal primary and secondary education. In the context of the Education 2030 agenda, SDG target 4.1 calls on States to provide “12 years of free, publicly funded, inclusive, equitable, quality primary and secondary education – of which at least nine years are compulsory.”*

### **Primary education**

- Please provide the age of enrolment and duration of primary education:

Article (10) Age of Admission: 1. A student will be accepted into the first basic grade if he has completed five years and seven months of age at the end of August of the year in which he will join school. 2. The age of admission for students with disabilities is determined according to instructions issued by the Minister, and in accordance with relevant international standards and conventions, after coordination with the relevant authorities. 3. The Ministry requests the Ministry of Interior to provide it with all birth data, in order to follow up on students who meet the age to enroll in school with the relevant authorities.

Article (6) Stages of Education The public education system consists of the following stages: 1. Preschool, for a period not exceeding two years before the basic education stage. 2. Basic education, which lasts nine years. 3. Secondary education, which lasts three years.

- Is primary education compulsory and free of charge?

☒ **Primary education is compulsory**

☐ Primary education is **not** compulsory.

☐ Primary education is free of charge.

☐ Primary education is **not** free.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

Article (5) Compulsory Education 1. Education shall be compulsory until the end of the tenth grade. 2. Education shall be free in all government educational institutions.

- What challenges were encountered in realizing primary education?

- |                                                                                                                                                                                                                                                                                             |                                                                                                                                                                                                                                                                                                                                                                                               |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <ul style="list-style-type: none"> <li><input type="checkbox"/> Limited access</li> <li><input type="checkbox"/> Issues of equity and inclusion</li> <li>✓ High dropout rates</li> <li><input type="checkbox"/> Poor quality programmes</li> <li><input type="checkbox"/> Other:</li> </ul> | <ul style="list-style-type: none"> <li><input type="checkbox"/> Poor learning outcomes in:               <ul style="list-style-type: none"> <li>Foundation literacy</li> <li>Numeracy</li> <li>Social and emotional learning</li> <li>Others</li> </ul> </li> <li>✓ Disparity in learning outcomes</li> <li><input type="checkbox"/> Low number of professionally trained teachers</li> </ul> |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

**Educational Statistical Yearbook for Scholastic year 2022-2023**

Table 24, page 46: Distribution of dropout percentage by directorate level and gender 2021-22

Table 25, page 47: Distribution of dropout percentage by grade, gender and supervisory authority in Northern Governorates (West Bank) directorates 2021-22

Table 26, page 48: Distribution of dropout percentage by grade, gender, and supervisory authority in Southern Governorates (Gaza Strip) directorates 2021-22 .

Table 27, page 49: Distribution of dropout percentage by grade, gender and supervisory authority in all governorates 2021-22

**Statistical Yearbook (both English and Arabic):** <https://moe.edu.ps/m/3106>

**ESSP, page 77: Student Dropout in Jerusalem**

Main causes of students' dropout:

- Israeli occupation municipality encourages students to drop out by tolerating and ignoring students' absence.
- Deteriorating economic conditions push families to take their children out of school into the labor workforce instead of continuing their education.
- Automatic upgrading of students regardless of his/her academic achievement or ratio of attendance; a policy adopted and applied on Arab schools by the occupation municipality.
- Shortage of school buildings, overcrowded classrooms, and its poor conditions.
- The apartheid wall and military check-points are serious obstacles obstructing students from continuing their education.

**Weak Student Achievements in Palestine, ESSP, page 78:**

National tests showed low levels of student achievement for the year 2017-2018 in basic subjects. This included the following averages: Science (grade 5: 44.3, grade 9: 33.9), mathematics (grade 5: 42.2, grade 9: 30.1) and Arabic (grade 5: 48.1, grade 9: 51.8). Palestine has stopped participating in international tests (TIMMS) since 2011, which made it difficult to make comparisons between Palestinian students and students in the region and the world.

- Please elaborate. Brief quantitative information may be added.

|  |
|--|
|  |
|--|

### **Secondary education**

*In this part, please provide information on the general availability and accessibility to all of secondary education, including technical and vocational secondary education and training.*

- Please provide the age of enrolment and duration of lower secondary education:

|             |
|-------------|
| 16-18 years |
|-------------|

- Please provide the age of enrolment and duration of upper secondary education:

|                                     |
|-------------------------------------|
| Ages 16-18, for a period of 3 years |
|-------------------------------------|

- Is lower and upper secondary education compulsory and free of charge?

- ✓ Lower secondary education is compulsory.
  - ☐ Lower secondary education is **not** compulsory.
- ✓ Lower secondary education is free of charge.
  - ☐ Lower secondary education is **not** free of charge.
  - ☐ Upper secondary education is compulsory.
- ✓ Upper secondary education is not compulsory.
- ✓ Upper secondary education is free of charge
  - ☐ Upper secondary education is **not** free of charge.

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, schools supplies, uniforms, transport and compulsory levies on parents). Brief quantitative information may be added.

|                                                                                                                                                               |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Article (5) Compulsory education: 1. Education shall be compulsory until the end of the tenth grade. 2. Education shall be free in all government educational |
|---------------------------------------------------------------------------------------------------------------------------------------------------------------|

institutions. Article (6): Stages of education (secondary education, which lasts three years) Education Law of 2017

- Secondary education is free, but there are non-obligatory school donations for secondary school students worth 70 shekels.
- School uniform is the responsibility of the parents.
- There are no transportation fees (transportation is not provided).
- There is a fee for the general secondary exam of 150 shekels.

Regarding books, books for the tenth grade are provided free of charge, with the exception of English language books (the price of the book is 5 shekels). Books for the eleventh and twelfth grades are at the student's expense. (Education decision regarding school books for the year 2022)

- Please indicate whether the legal minimum age for employment is aligned with the end of compulsory education:

*For reference: The employment laws and those related to compulsory education are interdependent and mutually reinforce each other. If the minimum age of employment is below that of compulsory education, the child is at risk of dropping out of school to work and therefore not completing compulsory education. On the other hand, if compulsory education is lower than the minimum age of employment, once the child has completed compulsory education, the door is open to child exploitation and the violation of labor laws.*

✓ Yes

No

- Please provide reference to the relevant laws and provisions and indicate how the provision is enforced:

Yes, "It is prohibited to employ children before they reach the age of fifteen. A medical examination must be conducted on juveniles before they join work to ensure their health suitability for it, provided that the examination is repeated every six months" - Labor Law of 2000

Article (93): It is prohibited to employ children before they reach the age of fifteen.

Article (94): A medical examination must be conducted on juveniles before they join work to ensure their health suitability for it, provided that the examination is repeated every six months.

✓ Labor Law 2000

- What challenges were encountered in realizing secondary education?

- ✓ Limited access
- ✓ **Issues of equity and inclusion**
- High dropout rates
- ✓ Poor quality programmes
- ✓ Other:
- ✓ Poor learning outcomes
- Low readiness of primary graduates
- ✓ Low number of professionally trained teachers

- Limited access
- Low number of professionally trained teachers
- Poor quality programmes
- Other:

- Please elaborate. Brief quantitative information may be added.

#### **Limited access:**

Access to secondary education passes through challenges and obstacles due to the lack of safe access to and from school, whether for students or teaching staff, in the northern governorates, including Jerusalem, due to the presence of many military checkpoints and gates and their frequent closure, as well as attacks, whether by occupation soldiers or settlers. Or because the occupation prevented the construction and paving of roads, and to confront these challenges and obstacles to education, the Ministry of Education provided buses to transport students by providing transportation service in (10) governorates by setting an activity under the strategic plan of the Ministry of Education by providing a financial allocation for this service on Over the course of an academic year, knowing that the Ministry has been providing the service since 2013.

Challenges of safe access in 2023 reached 406 students and 3297 teachers in all West Bank districts causing educational loss (waste) by either being barred to reach the school or delayed.

#### **Issues of equity and inclusion:**

Ensuring safe, comprehensive and equitable enrollment in education at all levels of the system. The first goal of Palestinian education includes ensuring safe access to education, inclusion and equity in education. This goal includes ensuring safe access to schools and educational institutions and providing a safe, encouraging, secure and violence-free educational environment for students and teachers, and ensuring protection and security for students and teachers, especially in areas where they are subjected to occupation harassment Israeli and settlers in marginalized and threatened areas, or the Old City of Jerusalem, Hebron, and elsewhere. Palestinian education also seeks to achieve inclusion and equity at all levels of education (kindergarten, basic education, secondary academic and vocational education, and non-formal education), and this goal constitutes a commitment to address all forms of exclusion and marginalization All aspects of inequality and inequality in access to learning and teaching opportunities Therefore, this goal involves a pledge to make the necessary changes in educational policies and to focus its efforts on the most disadvantaged groups, especially people with disabilities, to ensure that no one is left without education On two dimensions, the first of



which is improving enrollment in Educational stages (kindergarten, primary, secondary) and educational tracks (vocational track, scientific and technological track, humanities and entrepreneurship track) and finding a balance between them, and the second is to maintain enrollment and retention rates and good participation in education M) such as literacy rate and others.

#### **Low number of professionally trained teachers:**

One of the most important challenges is providing vocationally trained teachers on an annual basis. The number of vocationally trained teachers increases annually, as data on teachers who have been qualified by the National Training Institute indicates that the number increases annually (attached is a list of the numbers of teachers during the years 2019-2023). It also indicates that the increase also includes the evaluation report of the strategic plan for the education sector 2017-2022.

#### **Number of Secondary Stage Teachers who obtained a Professional Diploma Specialized in Education**

| No. of Teachers | Year      |
|-----------------|-----------|
| 72              | 2019-2020 |
| 57              | 2020-2021 |
| 116             | 2021-2022 |
| 49              | 2022-2023 |
| 26              | 2022-2023 |
| 27              | 2022-2023 |

#### **Poor quality programmes:**

The National Institute considers training programs to be an important challenge and is constantly working to develop programs to qualify teachers and support staff. These programs are evaluated and reviewed annually according to educational developments, and the educational field is involved in the process of reviewing, building and evaluating these programs annually.

#### **Other issues:**

1. The Corona pandemic affected the quality of secondary education in its early stages due to the lack of necessary experience among teachers for distance education in terms of dealing with platforms and designing e-learning. Accordingly, the Ministry has qualified all teachers in the fields of education design and employing educational platforms, in addition to raising Their digital competencies. As for the weakness of learning results, especially the results of national and international tests, education was trained in the areas of general pedagogy, content pedagogy, measurement and evaluation to improve their performance with the aim of improving student learning. The executive plan also

included outcomes to raise teachers' competencies in the areas of teaching strategies and evaluation methods and to enhance student literacy.

2. Economic conditions negatively affected the achievement of secondary education.
3. The unjust practices resulting from the occupation in Palestine have negatively affected the achievement of secondary education.
4. The frequent teachers' strikes negatively affected the achievement of secondary education.

## 2.3 Higher education

*For reference: Article/Paragraph 4(a) of the Convention/Recommendation provides for higher education. Ensuring higher education is essential to achieve SDG4, both targets 4.3<sup>39</sup>, and target 4.4<sup>40</sup>. Article 4 of the Convention requires states to make "higher education equally accessible to all on the basis of individual capacity". Article 13 of the International Covenant on Economic, Social and Cultural Rights (1966) further adds that this should be pursued by "every appropriate means, and in particular by the progressive introduction of free education". Higher education includes technical and vocational education and training.*

- Please indicate efforts made to ensure that higher education, including technical, vocation education and training, is equally accessible to all on the basis of individual capacity and/or is available free of charge (*several items may be ticked*):

- ☐ Higher education is free of charge
- ☐ Higher education is accessible on the basis of individual capacity (as assessed by reference to relevant qualifications and experience)
- ☐ Higher education is accessible through financial incentives and scholarships
- ☐ Higher education is accessible through positive or affirmative action measures
- ☐ Higher education is accessible through credit transfer system between states
- ☐ Higher education allows for multiple and flexible learning pathways (flexible entry and re-entry, recognition, validation, and accreditation of knowledge and skills acquired through non-formal and informal education).
- ☐ Other:

- Please list the relevant laws and policies. Where applicable, provide information on the direct costs (e.g., enrolment fees and tuition fees) and indirect costs (e.g., exam fees, university supplies, transport, accommodation). Brief quantitative information may be added.

---

<sup>39</sup> Which calls on states to "ensure equal access for all women and men to affordable and quality technical, vocational and tertiary education, including university".

<sup>40</sup> Which recommends to "substantially increase the number of youth and adults who have relevant skills, including technical and vocational skills, for employment, decent jobs and entrepreneurship".

- What challenges were encountered in realizing higher education?

- ☐ Limited access
- ☐ Issues of equity and inclusion
- ☐ Poor quality programmes
- ☐ Poor learning outcomes
- ☐ Other:
- ☐ Low number of professionally trained professors
- ☐ Insufficient mechanisms to ensure smooth transition from secondary to tertiary

- Please elaborate. Brief quantitative information may be added.

## 2.4 Adult education and alternative learning

*For reference: Article/Paragraph 4(c) of the Convention/Recommendation provides for adult education and alternative learning. While SDG4 aims to “ensure inclusive and equitable quality education and promote lifelong learning opportunities for all”, target 4.6 specifically calls on states to “ensure that all youth and a substantial proportion of adults, both men and women, achieve literacy and numeracy”. Furthermore, under target 4.4, states are called “to increase and diversify learning opportunities, using a wide range of education and training modalities, so that all youth and adults, especially girls and women, can acquire relevant knowledge, skills and competencies for decent work and life.”*

- Please indicate the measures taken to establish a system of continuing education and equitable access to learning and training opportunities (*several items may be ticked*):

- ☒ Provision of education for persons who have not received or completed the whole period of their primary education
- ☒ Provision of literacy programmes
- ☒ Provision of continuous learning (such as learning programmes to develop knowledge, skills, abilities, or competencies for personal and professional development)
- ☒ Provision of free of charge learning opportunities
- ☒ Provision of professional training including reskilling and upskilling programmes
- ☒ Recognition, validation and certification of non-formal and informal learning
- ☐ Provision of free of charge career guidance and counselling
- ☐ Lifelong learning entitlements including learning accounts, vouchers, etc.
- ☐ Other:

There are regulations for the operations of the Adult Education and Parallel Education Centers (in Arabic) [تعليمات مراكز تعليم الكبار والموازي 2023](#)

- Please elaborate further on the measures taken:

The Ministry is opening literacy eradication classes in different regions, and parallel education classes for students who have dropped out of school and wish to continue learning beyond the lower basic stage. The Ministry is also working on training new and old teachers, and employees in the directorates and the Ministry, in a way that is compatible with the needs and requirements of their job duties.

- What challenges were encountered in realizing adult learning and education?

- |                                                  |                                                  |
|--------------------------------------------------|--------------------------------------------------|
| ✓ Limited access                                 | ✓ Limited funding                                |
| ✓ Issues of equity and inclusion                 | <input type="checkbox"/> Poor learning outcomes  |
| <input type="checkbox"/> Poor quality programmes | ✓ Low number of professionally trained educators |
| ✓ <b>Other:</b>                                  |                                                  |

- ✓ Limited access
- ✓ Issues of equity and inclusion
- ✓ Limited funding
- ✓ Low number of professionally trained educators

- Please elaborate. Brief quantitative information may be added.

☐ **Limited funding**

Donors and private sector attention to fund education remains weak.

☐ **Low number of professionally trained educators**

Due to the scarcity of trained adult education specialists, this overshadows the weakness and decline in the number of trained teachers in the non-formal and adult education sector.

☐ **Other:**

Adult education and non-formal education still do not receive the same attention as formal education, as this sector suffers from a scarcity of funding due to the generally low education budget.

Non-formal education is considered the least effective among the programmes, as enrollment numbers have declined and its activities have stopped over the past two years. This may be due to the high level of education among the population and the low level of illiteracy, but there is still much that can be done, such as community education, digital literacy, continuing vocational education, in addition to lifelong learning.

### 3. Quality education provision and learning environment

*For reference: Articles/Paragraphs 2, 4(b) and 5(b) of the Convention/Recommendation provide for quality education. Quality education is fundamental to achieve all targets of SDG4. It is also particularly highlighted in SDG target 4.a that recommends states to “build and upgrade education facilities that are child, disability and gender sensitive and provide safe, non-violent, inclusive and effective learning environments for all”.*

#### 3.1 General measures

- Please indicate whether the legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of public education institutions regarding:

- ☐ State monitoring and inspections
- ✓ Health and sanitation
- ✓ Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))
- ✓ Infrastructure
- ✓ Curriculum
- ☐ Student-teacher ratio
- ✓ School fees (if relevant)
- ☐ Other

- |                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                      |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <ul style="list-style-type: none"><li><input type="checkbox"/> State monitoring and inspections</li><li><input type="checkbox"/> <b>Health and sanitation</b><ul style="list-style-type: none"><li><input type="checkbox"/> Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))</li><li><input type="checkbox"/> Infrastructure</li><li><input type="checkbox"/> Curriculum</li><li><input type="checkbox"/> Student-teacher ratio</li><li><input type="checkbox"/> School fees (if relevant)</li></ul></li></ul> |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

- Please elaborate on each of the measures taken:

*You may include information on policies, protocols or codes of conduct.*

School Environment Policy

#### 1) Health and sanitation

2) Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools).

The general goal of the school environment policy is to build a safe environment that enhances teaching and learning, which contributes to responding to the rights of students and workers, providing them with skills, and adopting environmental practices that lead to the strengthening and sustainability of environmental elements. The Palestinian Authority, with all parties obligated to adhere to approved Palestinian standards and instructions.

- Since assuming its duties in 1994, the Ministry of Education has sought to advance the educational process and improve the quality of education, as a basic right of the child, and in a manner consistent with the requirements and development prospects of Palestinian society, and in keeping with the requirements of the modern era, based on the humanitarian, civilizational and cultural principle of the Palestinian people, The Convention on the Rights of the Child, the Palestinian Child Law, and the World Fit for Children document, which in their entirety gave the right to education to all children of school age without discrimination, and to make education a basis for development in its various dimensions.
- The right to education remains incomplete if it does not keep pace with the right to health, protection, participation, freedom of opinion and expression, and concern for the best interests of the child in all administrative, legislative and policy procedures.
- The policy of reducing violence in schools, implemented in all Ministry of Education schools since 2009, which guarantees the child the right to protection and the right to education in a safe and stimulating environment away from fear and intimidation.
- The Ministry has worked on many activities against violence in schools in its various forms, issued many instructions that prevent all forms of violence, and implemented many programs, activities and events that enhance the protection of children and teachers alike, in addition to including in the school textbook what enhances the culture of dialogue. Respecting the opinions and opinions of others, students gain basic life skills.

**2) Infrastructure**

- a) The Ministry of Education and Higher Education has developed specifications and standards for school and educational buildings that are consistent with the requirements of the curriculum on the one hand, and green building standards that are consistent with providing a safe and healthy environment. At the same time, the Ministry continues its efforts, from its various sources, including the local community, with its bodies and individuals, to work on maintaining and rehabilitating existing schools and educational buildings, in a way that ensures their sustainability and consistency with educational and health standards, and makes them an attractive environment for students and educational and administrative bodies, the various stages of education starting from Before school, through to the lower and upper basic levels, and secondary levels, as well as employees working in education directorates, ministry buildings, training centers, etc.

- b) The Ministry, through the General Administration of Buildings, seeks to continue searching for funding sources that contribute to providing an educational environment consistent with Palestinian standards and specifications for various school and educational buildings, so that these efforts stem from the Ministry's strategic development plans. At the same time, the General Administration of Buildings continues to comply with international standards to ensure the provision of a school environment that cares about the environment and the sustainability of natural resources, including, for example: schools that take into account the environment surrounding the school grounds and benefit from rainwater in irrigating school gardens, as well as generating electricity using solar cells. Thermal insulation ensures reliance on energy sources for heating and cooling school facilities.
- c) In addition to the standards and specifications for buildings, the procedures for contracting with contractors and consultants are governed based on the Palestinian Purchase Law and its regulations in general or the purchasing procedures approved by some financing bodies and are controlled and followed up through the institutions organizing this, whether the Ministry of Public Works and Housing, the Supreme Council Public procurement policies, etc.
- d) Green Building Guide - State of Palestine.

### 3) Curriculum

In 2015, the Ministry adopted a curriculum development policy in accordance with the education reform strategy, which included developing a general framework for the curriculum in which all aspects of development were taken into account in terms of scientific and educational developments and social, political and economic changes in a way that serves the process of national liberation. Within the framework of this policy, the Ministry adopted several interventions in its annual plans, within the priority of curriculum reform from 2021 to 2024.

### 4) Student-teacher ratio

There is no calculated student-teacher ratio. However, there is a policy to open a new classroom once there are 50 students per class

### 5) School fees (if relevant)

There are no compulsory fees. However there are non-compulsory yearly school donations valued at NIS50 (\$13.4) for the Basic Stage and NIS 70 (\$18.8) for the Secondary stage.

### - What challenges were encountered in realizing quality education?

- |                                                                             |                                                                   |
|-----------------------------------------------------------------------------|-------------------------------------------------------------------|
| <input type="checkbox"/> Non-supportive or inadequate learning environments | ✓ Low quality educational infrastructure and materials            |
| <input type="checkbox"/> Violence in schools                                | <input type="checkbox"/> Inadequate parental support to education |
| <input type="checkbox"/> Cost of education                                  | ✓ Long distances to schools                                       |
| ✓ Conflicts or crises                                                       |                                                                   |
| ✓ Other:                                                                    |                                                                   |

#### ☐ Violence in schools

- The Ministry of Education worked to reduce violence through many programs and activities that targeted students in schools, and issued many regulations and

instructions that prevent the use of any form of violence inside the school and followed up on its implementation. Within the Ministry's strategy, a policy to reduce violence in schools was prepared. Palestinian Authority to provide protection for students, considering this a child's right, and to create a safe, attractive, and promoting environment for education free of violence.

- The Ministry is committed to providing the best ways to create a safe educational environment free of violence, develop positive personality, and enhance the participation of parents and local community institutions in the educational process, with the presence of an educational guide in every school.

#### □ **Conflicts or crises**

- Due to the prevailing conditions of wars, the severing of safe access, and the multiplicity of violations, which created the educational process within unstable conditions and exposed it to any emergency that events may impose, which prompted the Ministry to develop a strategic plan for emergencies so that the Ministry can prepare, respond, and then recover from what is imposed and produced by any emergency conditions.

The directorates' follow-up unit has been monitoring and documenting all violations to which the educational process is exposed and producing them in a detailed annual report detailing what has been wasted in the educational process and its impact on the level of achievement.

The unit is keen to provide safe access for all students at all times in order to overcome the impact of closures and road blocks on the disruption of the educational process, by providing transport buses that transport students from remote areas to and from school daily.

#### □ **Low quality educational infrastructure and materials**

- Despite the lack of financial resources, the Ministry and its directorates are seeking to arrange the needs aimed at developing and sustaining infrastructure within a system of priorities that has been developed in order to ensure consistency in the steps of infrastructure development with the available financial resources. This system has succeeded adequately in supporting the provision of education in various population centers, including Bedouin and remote areas, through which the dropout rates of students from the education system, both primary and secondary, have decreased.
- On the other hand, and in line with the requirements of the curriculum, specialized educational facilities are provided in schools, including science and technology laboratories, libraries, multi-purpose halls, educational resource rooms, and other arenas, playgrounds, and gardens, all of which contribute to allowing students the opportunity to implement the various educational requirements of the curriculum in a way that ensures
- Providing them with educational and learning skills based on the Palestinian curricula.



#### ☐ Long distances to schools

Students who live in areas “C” are usually forced to go to study in schools in areas “A” and “B”. Therefore, the Ministry has created schools to support students and provide a safe education through the so-called challenge schools, which are built in areas called “C” or in the town. Old City / Hebron or behind the apartheid wall because the long distances for students to reach those schools are fraught with dangers, whether the distance from the students’ place of residence to the school, the roughness of the road, and the danger (stray dogs, floods in the winter, high temperatures in those areas. A list of the names of the Challenge Schools established by the Ministry. A year ago, in the summer, there were a large number of rapes, and the occupation soldiers carried out military training operations near the place of residence, which exposed them to many dangers, most notably the waste of the occupation soldiers and others.)

#### ☐ Other: -

- Lack of resources needed to invest in improving school infrastructure.
- Lack of electronic devices and connection to the Internet necessary for distance learning (e-learning) for many students
- Lack of financial resources necessary to improve the performance of teachers and support staff
- The general unstable situation in Palestine; Because of the occupation

### 3.2 Education personnel

*For reference: Article/Paragraph 4(d) of the Convention/Recommendation provides for the education personnel. This corresponds to SDG target 4.c which is entirely devoted to the teaching profession as it calls on states to “substantially increase the supply of qualified teachers”.*

- Please indicate the measures taken to improve the teaching and working conditions of education personnel, especially teaching staff at all levels and regarding the training for the teaching profession (several items may be ticked):

✓ **Teacher training is provided without discrimination.**

☐ Teachers’ average salaries are competitive or at least comparable to those paid in other professions requiring similar or equivalent qualifications (at all levels).

✓ **Initial training and continuous professional development are provided.**

✓ **Minimum standards and qualifications required for the teaching profession.**

☐ Measures taken to strengthen the social status and attractiveness of the teaching profession.

✓ **Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.**

☐ Establishment of performance monitoring systems.

✓ **Measures taken to increase women in leadership positions in education.**

☐ Other:

□ **Teacher training is provided without discrimination.**

Training is provided to teachers in tracks that include training the new teacher from the moment he joins the school and continuing his training through short courses provided by the General Administration of School Education, and through specialized professional diploma programs for teachers implemented by the National Training Institute, which targets teachers who do not hold a qualification certificate. Educational, where the National Institute annually monitors data on all teachers, selects the directorates that have a larger number of unqualified teachers (between 5-7 education directorates are targeted annually in training), and implements training in them. The National Institute also opened in 2023 Field: All teachers who wish to obtain an educational qualification diploma must submit an application to join the programs of the National Institute to be targeted according to a prepared plan that allows them to join the training according to need.

□ **Initial training and continuous professional development are provided.**

As for initial training and continuing professional development, there are preparation programs provided by the National Training Institute, targeting new teachers, new kindergarten teachers, new school principals, as well as new administrative employees in the ministry and directorates.

[تقرير المتابعة والتقييم - تأهيل المعلمين -](#)

[تهيئة رياض الأطفال - مروس](#)

[نبذة عن برنامج تهيئة المدير الجديد - مروس](#)

[نبذة عن برنامج تهيئة المعلم الجديد - مروس](#)

[برامج الإداريين - مروس](#)

□ **Minimum standards and qualifications required for the teaching profession.**

A Bachelor degree has been set as the minimum educational achievement for applying to the teaching profession.

□ **Measures taken to promote diversity in the teaching workforce, including to redress gender imbalances at different levels of education.**

1- Government schools are divided into female and male schools for all grades. The presence of female teachers in schools is normal, equivalent to the presence of female teachers. In fact, the number of female teachers increases due to the feminization of basic education from the first grade to the fourth grade, as female teachers teach at this stage, both male and female, in many schools. . Therefore, the presence of female teachers is greater than the number of males

2-The Ministry adopted a gender-responsive budget, on the basis of which it adopted a definition that guarantees the achievement of fair and equal opportunities for various groups and members of society, men and women, and marginalized areas, by rearranging priorities in the budget to contribute to achieving social justice.

3- There is no discrimination between genders in appointments, and a percentage of appointments has been allocated for people with special needs

Regulating policy Cabinet decision: Gender-responsive policies over 20 years in the State of Palestine.

- Please elaborate on each of the measures taken:

☐ **Measures taken to increase women in leadership positions in education.**

In the Ministry of Education, there are no restrictions on holding positions at all levels, as vacant positions are announced, including the highest categories, so that opportunities to compete are available for males and females according to the standards set in the presence of internal control, the general staff, and the department with jurisdiction.

Regulating policy Cabinet decision: Gender-responsive policies over 20 years in the State of Palestine.

- What challenges were encountered in the education personnel?

- |                                                           |                                                        |
|-----------------------------------------------------------|--------------------------------------------------------|
| ✓ Shortages of teaching staff                             | ✓ Low quality educational infrastructure and materials |
| ✓ Lack of qualified, trained and motivated teaching staff | ✓ High student – teacher ratio                         |
| ✓ Lack of training centers                                |                                                        |

☐ Other:

- ☐ **Shortages of teaching staff**
- ☐ **Shortages of teaching staff**
- ☐ **Lack of qualified, trained and motivated teaching staff**
- ☐ **Lack of training centers**
- o Low quality educational infrastructure and materials**
- o High student – teacher ratio**

- Please elaborate. Brief quantitative information may be added.

☐ **Shortages of teaching staff**

There is a shortage of male teachers for English, mathematics and physics

☐ **Shortages of teaching staff**

Applicants for educational jobs are subject to an employment test and are required to have a bachelor's degree in the specialty and an educational qualification diploma or a bachelor's degree in educational pedagogy (content pedagogy, such as that granted by the College of Educational Sciences), except for the severe shortage of applicants for educational jobs in the specializations of mathematics, physics, and the English language, especially males. The Ministry is forced to employ job applicants who only hold a bachelor's degree in the specialty (i.e., without an education diploma). Accordingly, the Ministry enrolls them in the specialized professional diploma at the National Training Institute to bridge their knowledge and professional gap, in addition to enrolling all new teachers in a new teacher preparation course for a full year.

#### ❑ **Lack of qualified, trained and motivated teaching staff**

Currently, when selecting faculty members, it is required that they have an educational qualification. The National Institute grants a specialized professional diploma to previously appointed teachers who do not hold an educational qualification. The Institute also prepares new teachers through preparation programs to enable them to manage the classroom and to inform them of their rights and duties. In addition to the short-term courses given to them through the General Administration of School Education.

#### ❑ **Lack of training centers**

There are training centers in most education directorates, with the exception of two or more directorates, but most of these centers need rehabilitation of either the infrastructure or the equipment available in them, and it is necessary to rehabilitate the technological infrastructure in them to keep pace with technological progress in the educational and training process. During the year 2023, the National Institute inventoried the needs of these centers in an attempt to provide them, but funding for the Ministry's executive plan in the year 2024 was restricted, such that the financial capabilities did not allow providing any of these needs.

#### o **Low quality educational infrastructure and materials**

Despite the lack of financial resources, the Ministry is fully aware that the administrative environment has a significant impact on the educational process. Therefore, as part of the steps to strengthen the capabilities of the staff at the Ministry's center and its directorates, the Ministry has provided adequate and comfortable buildings for its employees, equipped with the necessary technology capable of organizing and maximizing efforts. . Education directorates have also been provided in all governorates of the country, in a way that ensures easy movement for employees to visit and follow up on the progress of the educational process, and to ensure the provision of buildings with sufficient spaces suitable for the administrative cadres of these directorates and to ensure easy access for service recipients to these buildings.

Green Building Guide - State of Palestine.

#### o **High student – teacher ratio**

In the absence of a specific ratio in the law for the number of students to teachers, this cannot be considered a challenge, but the challenge related to this point is a planning challenge, as the number of students is concentrated in crowded areas such as cities, and this results in the presence of a large number of students inside the classroom - the number is less than 50. The law of division - On the other hand, there are geographical areas such as villages where there is no overcrowding, which may result in the integration of people, and this is also the case in challenge schools.

### **3.3 Respect for human rights and fundamental freedoms**

*For reference: Article/Paragraph 5(1)(a) of the Convention/Recommendation provides for the respect for human rights and fundamental freedoms. This is covered under SDG target 4.7.<sup>41</sup> Please note that this section contributes to the general monitoring of Article/Paragraph 5(1)(a) of the Convention/Recommendation and that the future consultation on the 1974 Recommendation concerning Education for International Understanding, Co-operation and Peace and Education relating to Human Rights and Fundamental Freedoms // 2023 Recommendation on [...] will be used specifically for monitoring SDG4 indicator 4.7.1.*

- Please indicate the national efforts taken in directing education to the full development of the human personality and the strengthening of respect for human rights and fundamental freedoms (several items may be ticked):

- ✓ **Curriculum includes human rights education.**
- ✓ **Educational and/or extracurricular activities are organized on human rights education.**

☐ Other:

- Please elaborate on each of the measures taken:

In line with international and national conventions, the Ministry of Education and Higher Education, represented by the Development Center, has taken a set of procedures and measures aimed at educating in the field of human rights and fundamental freedoms, combating discrimination, and combating racial discrimination, through

Integrating concepts of combating racial discrimination into educational curricula:

- Introducing the ethnic minorities present in Palestine and located within the borders of the State of Palestine:
- Study units specialized in respecting human rights and fundamental freedoms, and combating discrimination
- Concepts carried in the educational content of books on national and social upbringing and social, historical and geographical studies
- Connected concepts presented in the form of various activities such as dialogue, discussion, seminars, research issues, etc.

Attached: Report on Combating Discrimination in Education and Respecting Human Rights and Fundamental Freedoms 2021-2024 [تقرير التمييز العنصري 2024](#) =

### 3.4 Non-state actors in education

<sup>41</sup>

Which calls on states to “ensure that all learners acquire the knowledge and skills needed to promote sustainable development, including, among others, through education for sustainable development and sustainable lifestyles, human rights, gender equality, promotion of a culture of peace and non-violence, global citizenship and appreciation of cultural diversity and of culture’s contribution to sustainable development”.

*For reference: Articles/Paragraphs 2(c) and 5(1)(b) of the Convention/Recommendation provide for non-state education provision<sup>42</sup>.*

- Please indicate the measures taken to ensure the provision of quality non-state education (several items may be ticked):

- ✓ **Legal provisions prohibiting discrimination on the grounds listed by the Convention/Recommendation<sup>43</sup> explicitly apply to non-state educational institutions.** Please specify:

The instructions for private and foreign schools issued by the Ministry of Education and Higher Education, emanating from the Education Law (Decision Law No. 8 of 2017), especially Articles (3) and Article (17), are consistent with the above-mentioned recommendation in Articles (15) and (18). ) and (26) and (27)

- ✓ **Policies aim to guarantee that the development of non-state education does not generate discrimination and that non-state actors offer a relevant alternative (without supplanting public education).** Please specify:

The Ministry of Education and Higher Education is committed to private schools achieving the goals of the educational system contained in the Education Law, Article (3).

- ☐ Legal provisions provide for the rights of the parents /legal guardians for providing religious and moral education for their children. Please specify:

- ☐ Legal or regulatory framework lays out the conditions and minimum education standards for the establishment and functioning of non-state educational institutions. Please specify what is covered:

- ✓ **Registration**
- ✓ **State monitoring and inspections**
- ✓ **Qualifications of teachers**
- ✓ **Health and sanitation**
- ✓ **Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))**
- ✓ **Infrastructure**

---

<sup>42</sup> Private, faith-based, NGOs, community actors.

<sup>43</sup> See: Article/Paragraph 1(1).

- ✓ **Curriculum**
- ✓ **Student-teacher ratio**
- ☐ School fees
- ✓ **School closures**
- ☐ Other

- ☐ **Registration**
- ☐ **State monitoring and inspections**
- ☐ **Qualifications of teachers**
- ☐ **Health and sanitation**
- ☐ **Safety (children learn in a safe environment free from violence or harassment, including school-related gender-based violence (in and around schools))**
- ☐ **Infrastructure**
- ☐ **Curriculum**
- ☐ **Student-teacher ratio**
- School closures**

- Please elaborate:

The Ministry of Education and Higher Education supervises and follows up the work of private schools through the directorates of education in all governorates, through instructions regarding the procedures for granting and renewing licenses for private and foreign international schools. This work has been organized according to the various articles included in the aforementioned instructions, in the areas specified in Paragraph.

- What challenges were encountered in non-state education provision?

- |                                                                                                                                                                                                                                                    |                                                                                                                                                                                  |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <ul style="list-style-type: none"> <li><input type="checkbox"/> Low quality educational infrastructure and materials</li> <li>✓ Low number of professionally trained teachers</li> <li>✓ High student – teacher ratio</li> <li>✓ Other:</li> </ul> | <ul style="list-style-type: none"> <li><input type="checkbox"/> Issues in terms of equity and inclusion</li> <li>✓ Weak government regulatory and monitoring capacity</li> </ul> |
|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|

- ☐ Weak government regulatory and monitoring capacity
- ☐ Low number of professionally trained teachers
- ☐ High student – teacher ratio
- ☐ Other:

- Please elaborate. Brief quantitative information may be added.

- **Weak government regulatory and monitoring capacity**
- The increasing growth in the number of private schools has resulted in a weakness in monitoring the performance and outcomes of education in some schools. This is also due to the lack of cadres and human resources in the directorates responsible for follow-up and writing the necessary reports for this. Also, the lack of work on classifying schools is another reason for the weakness of the organization and monitoring process.
- The number of non-governmental schools increased from (384) in the year 2021, to (454) in the year 2023.
- **Low number of professionally trained teachers**
- The continuous change in teachers in private schools leads to a decrease in the number of trained and educationally qualified teachers.

**Other:**

- Some private schools in the governorates of Jerusalem, Hebron, and Nablus suffer from overcrowding due to the inability to expand, build, or add facilities to the school to meet the increasing number of students. (As statistics from the Ministry of Education indicate).
- The challenge of the steady increase in school fees is a real challenge, especially in the city of Ramallah, and this is due to the high demand for enrollment in private schools. For example, installments in the Ramallah District range from NIS 2,300 (\$618) to NIS24,000 (\$6,453), while in Hebron from NIS1,500 (\$403) to NIS6,000 (\$1,613), and in Bethlehem from NIS1,350 (\$363) to NIS9,400 (\$2,527).

### 3.5 Digital education

*Digital education is both an opportunity for enhancing access but also can lead to challenges in terms of quality education and inclusion<sup>44</sup>.*

- Please indicate the measures taken to ensure the provision of quality digital education (several items may be ticked):

- ✓ **Digital technology use in education is provided for in the legal framework.**

Please indicate the relevant text and provisions:

The Ministry developed a policy paper for digital transformation in education, which focused on blended learning and electronic management, infrastructure, curriculum development, culture, and digital skills for students, teachers, and supervisors, and providing open digital resources to support the curriculum.

- ✓ Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to



privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)

- Regulatory framework establishes minimum education standards for digital education to which all actors in education must comply.
- ✓ Measures to remove barriers to accessing digital content<sup>45</sup>, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.
- ✓ Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.
- ✓ Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education
- ✓ Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.
- ✓ **A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.**

- Please elaborate on each of the measures taken:

- Core legislations, policies, strategies or plans for the management, privacy, security, storage, transfer, use, and sharing of education data internally and externally to ensure the right to privacy of learners and education stakeholders (e.g., informed consent, transparent usage policies, etc.)

#### Educational Digitization Policy

- Measures to remove barriers to accessing digital content<sup>46</sup>, including ensuring access to curriculum-aligned digital content available on free, public, multi-modal national platforms; high-quality content is available in core subjects, official national language(s), and designed with inclusive features to assist learners with disabilities.

Weak interactive digital content in the Arabic language, which required creating content in the Arabic language or translating and republishing global sources, which requires licensing and permissions to use the content. □ Digital skills incorporated into pre- and in-service teacher and leadership training curricula to create a culture of digital innovation and growth anchored in equity and inclusion that enables ongoing professional development for existing and emerging staff.

The Ministry included digital skills in the training of teachers, especially new teachers, and uploaded some skills in the form of activities and assignments into the Palestinian curriculum in various specializations.

- Future-ready skills (including digital skills, data and AI competencies, critical thinking, etc.) integrated into formal curriculum at all levels of education

<sup>45</sup> Lack of internet connection, basic infrastructure or devices.

<sup>46</sup> Lack of internet connection, basic infrastructure or devices.

The Ministry has set, within the future plan, the inclusion of digital skills, artificial intelligence competencies, programming, and problem solving primarily in technological education and in the form of activities in other departments.

- ☐ Measures address the digital divide, including ensuring access to reliable electricity, meaningful internet connectivity at school and at home, devices suitable for learning and teaching, safe and sustainable software and secure platforms, and integrated education data systems.

Some schools do not have electricity, while others promised simple Internet services.... The Ministry provided solar panels to provide electricity, and searched for alternatives to provide Internet services to the school and neighboring homes, especially in marginalized areas.

- ☐ A well-established, sustainable, and cost-effective budget secured from a range of funding sources and intersectoral cooperation, supported by impact focused reporting linked to regional strategic goals.

The Ministry allocates a share of its budget (although it is generally small) for digitization and its requirements in terms of infrastructure, training, digital resources, and licenses.

- What challenges were encountered in digital education provision (check all that apply)?

- |                                                                                                                                                          |                                                                                                                           |
|----------------------------------------------------------------------------------------------------------------------------------------------------------|---------------------------------------------------------------------------------------------------------------------------|
| <input type="checkbox"/> Lack of quality, curriculum-aligned digital teaching and learning content that supports flexible learning and teaching pathways | <input checked="" type="checkbox"/> Limited access to internet and/or electricity                                         |
| <input type="checkbox"/> Lack of equity and inclusion in digital learning solutions                                                                      | <input type="checkbox"/> Limited access to hardware (devices, chargers, etc.)                                             |
| <input type="checkbox"/> inadequate safety measures and IT support to respond to issues of child online safety or reduce cyber security risks            | <input type="checkbox"/> Difficulty in regulating the use of digital education solutions                                  |
| <input checked="" type="checkbox"/> <b>Other:</b>                                                                                                        | <input checked="" type="checkbox"/> Difficulty in sustainably financing digital education solutions at national scale     |
|                                                                                                                                                          | <input type="checkbox"/> Lack of digital skills development for meaningful use of digital technology in teaching practice |
|                                                                                                                                                          | <input type="checkbox"/> Disjointed or fragmented solutions that are not centrally systematized or regulated              |

Developing a monitoring and evaluation system for employing digital technologies and resources in education

- Please elaborate. Brief quantitative information may be added.

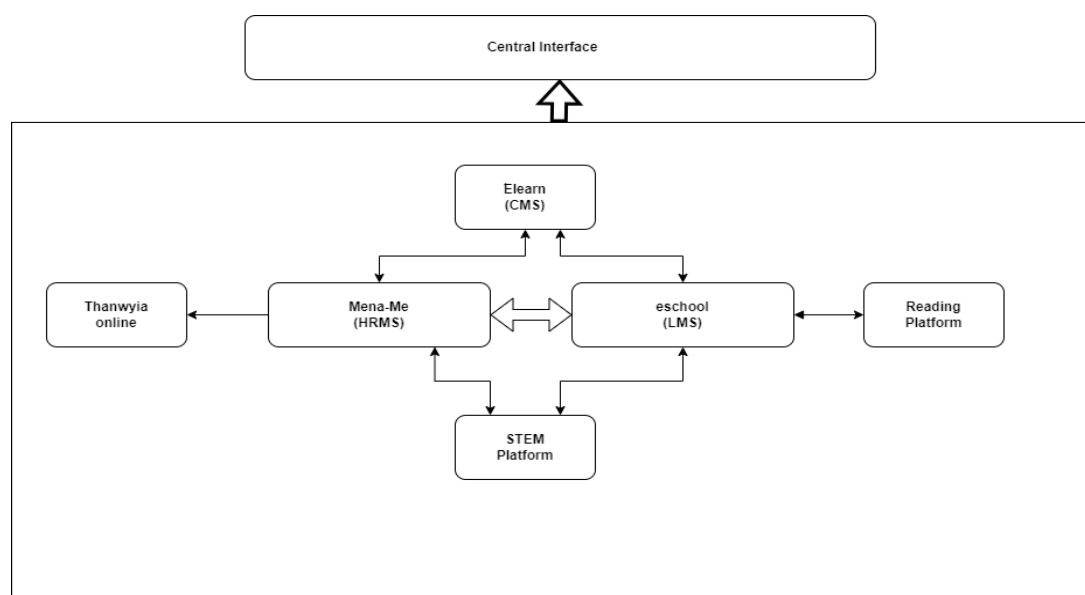
### 1. Laboratories and supporting devices for e-learning

| LCD Projector | Interactive boards | Photocopier | Tablets | Laptops | PCs   | Computer   STEM Labs | schools |
|---------------|--------------------|-------------|---------|---------|-------|----------------------|---------|
| 680           | 2100               | 2140        | 21000   | 13500   | 27450 | 1404                 | 1924    |

### 2. Wired and wireless networks in schools

| No of wired Networks | No of wireless Networks |
|----------------------|-------------------------|
| 1372 school          | 1105 school             |

### 3. Interactive educational platforms



## 4 Strengthening governance systems

*For reference: The Education 2030 Framework for Action states "to ensure quality education and conditions for effective education outcomes, governments should strengthen education systems by instituting and improving appropriate, effective and inclusive governance and accountability mechanisms; quality assurance; management information systems; transparent and effective financing procedures and mechanisms; and institutional management arrangements, as well as ensure that robust, timely and accessible data are available" (para. 18).*

- Please indicate the measures taken in terms of governance (several items may be ticked):

✓ **Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.**

- The legal and regulatory environment and policies in general: It includes the legal framework regulating the educational process, the availability of accountability mechanisms, the ministry's systems and work manuals of national origin, and the organizational structure and its simulation of the results-based management approach.

- Leadership: Empowerment and decision-making in accordance with approved standards (such as transparency and objectivity) developing policies, leadership decisions based on objectivity, transparency and fulfillment of obligations, the complaints system and its effectiveness, budget preparation, the Ministry's website.
- Organization culture: resource management, accountability practice: accountability practice, rewards and punishment, clarity of responsibilities, alignment of jobs with "service delivery approach", working within job descriptions, and performance appraisal system.
- The Ministry of Education has adopted a results-based monitoring and evaluation system since 2009 as a reliable basis. In monitoring the degree of achievement of the policies and goals of the plans, which include ensuring the right to education within a framework of government and transparency, as this system and the annual periodic reports issued by it are prepared; As a diagnostic tool for the educational system; Because of the real data and evidence it provides, it is considered a compass for determining the direction of the educational process□ Monitoring results are made public.

Please provide the link:

M&E Reports:

<https://www.moe.pna.ps/uploads/20230201205607.pdf>

<https://www.moe.pna.ps/category/content/1036>

□ Monitoring processes are participatory, inclusive and regular.

✓ **Sector-wide and multisector approach is adopted to education governance.**

Contribution of the Education Sector Strategic Plan – ESSP – with the cross-sectoral strategies:

### 1. Cross-Sector Gender Strategy:

**First:** Studies and assessment of the educational situation and the National Education Report 2000-2015 revealed that Palestine is one of the countries that place great emphasis on gender equality and justice. It also revealed that females outperform males on many issues whether regard to higher enrollment at all levels of education, mentioned in the first strategic goal, or in regard to quality education, which is mentioned in the second strategic goal.

**Second:** The Ministry of Education has taken into account gender issues in all of its interventions to achieve its strategic goals: enrollment and access to education, quality of education, and governance of the education system.

**Third:** The monitoring and evaluation system will include the gender variable in all relevant indices to tackle any issues arising during implementation.

### 2. Cross-Sector Environment Strategy:

The Ministry takes into account environmental issues in its interventions to achieve the strategic goals. Examples of this include the following:

- To achieve the first strategic goal, which is access to education and a safe education environment (through interventions), the Ministry takes advantage of renewable energy, where the use of solar cells has been included as an essential component of new school buildings. It also reinforced the concept of green buildings.
- To achieve the second strategic goal of improving quality of education, the Ministry has taken into account environmental issues and the protection of biodiversity, as part of its efforts to enhance the Palestinian curriculum. The Ministry will also launch multiple school activities to encourage protection of the environment through scout activities at schools.
- Concerning governance and management, the Ministry conducts a comprehensive environmental survey every two years at all educational facilities (preschools, basic, secondary and vocational schools) in cooperation with the Central Bureau of Statistics (PCBS). The Ministry also monitors environmental issues through its assessment and evaluation system which the Ministry has approved for its annual and strategic plans.

### **3. Cross-Sector Youth Strategy:**

**First:** Youth constitutes an important part of the categories targeted in the Education Sector Strategy. The Ministry endeavors to address all issues pertaining to this category through its interventions to achieve the strategic goals. These interventions include:

- Providing youth with educational and vocational guidance to help them choose suitable careers for their future.
- Providing sport and free activity facilities for the youth to allow them to express their talents and interests at schools and universities.
- Promoting voluntary activities for the benefit of society and to preserve the environment and enhance ethical values.
- Providing learning tracks that suit youth's interests and needs to allow them to find suitable jobs.
- Addressing the psychological, physical and mental needs of the youth through a variety of educational activities that are implemented at all levels of education.

**Financial resources are effectively allocated to prioritize the provision of free, quality, public education and are adequately budgeted for in government plans.**

The Ministry is working to increase efficiency and effectiveness with regard to the budget and make spending more transparent, as funding is distributed according to the plan's programs and objectives, and the distribution of funds is done in a way that contributes to supporting these objectives.

**The decision-making process for the allocation of resources to education is transparent.**

Yes, as the mechanism is exposed to all parties, as each director and his management determine the priorities, and the decisions related to distributing the budget are made by committees and not a single person.

**Ensuring crisis-sensitive and disaster risk-informed planning and programming, including the provision of quality education in emergencies.**

Planning is done according to the specific circumstances of Palestine, and emergency plans and alternative plans are developed to comply with the emergency plan according to the degree and severity of the situation. For example, emergency plans have been developed in light of the Corona pandemic and for e-learning in light of the war and when teachers' strikes occur.

**There is a certain degree of decentralization in favor of local public authorities and autonomy for schools to ensure context relevance of their teaching.**

The sector plan emphasizes a decentralized, democratic and accountable education sector as a crucial driving force. Achieving this ambitious goal requires a strong organizational structure and effective management practices, which must be emphasized

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- Please elaborate on each of the measures taken:

**Monitoring mechanisms to assess compliance with the right to education obligations, including through management information systems.**

4. Annual and Semi-Annual Progress Reports for the Annual Work Plan and Budget
5. Annual Monitoring and Evaluation Report for the Implementation of ESSP

<https://www.moe.pna.ps/category/content/1036>

- What challenges were encountered in terms of governance?

- ✓ Budgetary constraints
- ✓ Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels
- ✓ Absence of supportive/ inconsistent/obsolete legal and policy environment
- ✓ Lack or weakness of monitoring systems – including the lack of reliable data
- Poor dialogue with teachers' trade unions
- ✓ **Other:**

- Budgetary constraints
- Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels
- Absence of supportive/ inconsistent/obsolete legal and policy environment
- Lack or weakness of monitoring systems – including the lack of reliable data

- Please elaborate. Brief quantitative information may be added.

□ **Budgetary constraints**

In recent years, the issue of a decline in external financial support provided to Palestinian education has begun to emerge, and it is only one of the challenges associated with the occupation and the incitement towards Palestinian curricula and educational institutions. Some countries have reduced the level of support for Palestinian education and its support, especially the countries in the joint financing basket, and the withdrawal of the Belgium from contributing to this basket, other countries have completely cut off their support, such as the United States of America. Another manifestation of this challenge is the reduction in support directed to the UNRWA, especially education, and the

emergence of some voices calling for an end to its role in the relief, employment and education of refugees, which would constitute a great burden on Palestinian education if it was reduced Education services at the UNRWA stopped.

Commitments to financial allocations decreased over the past few years because they were affected by the government's limited ability to fulfill its obligations due to the occupation's measures.

□ **Absence of supportive/ inconsistent/obsolete legal and policy environment**

Incomplete structural framework of the educational system: The Ministry of Education operates according to an organizational structure approved in 2005 with minor amendments made during the following years, and this development of the organizational structure preceded the adoption of the Ministry's second strategic plan 2008-2012, and therefore the nature of this structure is not consistent With its strategic plans, there is an overlap in tasks and responsibilities between the general departments in the Ministry of Education. Work has been underway for more than three years to develop an organizational structure appropriate to the Ministry's current strategic plan, but the work has not been completed until this moment.

Incomplete legal framework for the educational system: Despite the adoption of the Education Law in 2017, the regulations related to it are still in the process of preparation and have not been approved yet, which weakens the legal framework according to which the Ministry operates Among the systems related to the law: the education tax system. The licensing system for private educational institutions, and the advisory council system for education.

□ **Lack or weakness of monitoring systems – including the lack of reliable data**

- Multiple sources of information and databases and the lack of interconnection of different information systems through a single electronic check, which sometimes creates confusion in the accuracy of the information as a result of the difference in the mechanism of collecting information and its chronological reference.
- Dispersion of the computerized systems for administrative work in the Ministry of Education and their lack of harmony and compatibility within a unified computerized system

**Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels Lack of involvement of relevant stakeholders and lack of cooperation/coordination at different levels**

Enhancing opportunities for cooperation with the private sector and encouraging it to invest in education is still weak due to the absence of a clear-cut strategy towards attracting the private sector, and although there is progress, it is limited, and is absent in important areas such as adult education and kindergartens in particular In marginalized areas and villages, this is a must Holding periodic meetings with donors and supporters of the education sector, with the participation of the private sector, to encourage it to invest in education.

□ **Other:**

Failure to adopt a clear and specific strategy for training and developing administrators in the educational system according to development paths for the various administrative functions of work in the Ministry of Education, which disperses the efforts and funds allocated for training and does not achieve the desired results.

### III. Methods used to draw the attention of the various authorities in the country to the instruments

*For reference: UNESCO governing bodies have underlined the need for awareness raising. Given the importance of normative action at the national level, wide dissemination of the Convention must be ensured, with the support of National Commissions for UNESCO.*

- Have activities been carried out to draw the attention of the various authorities of the country to the Convention/Recommendation and their provisions about the right to education and to raise awareness of the principles of non-discrimination and equality of educational opportunities? (Several items may be ticked)

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages
- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources
- ☐ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments
- ☐ Other:

- ☐ Translation of the Convention/Recommendation into the national and possibly local languages : **No**
- ☐ Dissemination and advocacy of the core content of the Convention/Recommendation or the core principles of the right to education including through appropriate materials and resources: **NO**
- ☐ Activities undertaken or supported by the National Commission to promote non-discrimination and equality of educational opportunities and to foster debate on critical issues in relation to the rights enshrined in the instruments: **No**

☐ Other:

The General Directorate of Public and International Relations signed the agreement, translated it, and published it in the Official Gazette

[https://ogb.gov.ps/public/files/server/inter\\_agrees/65.pdf](https://ogb.gov.ps/public/files/server/inter_agrees/65.pdf)

Its contents have been integrated into educational media discourse for years.